

Air Charters Terms of Use

Thank you for expressing interest in Aircharters. (“**Air Charters**”, “**we**” or “**us**”) and our online travel marketplace”. Air Charters “marketplace” collectively consists of our website, including any subdomains thereof, any other websites through which Air Charters makes its services available, and our mobile, tablet and other smart device applications and application program interfaces (collectively referred to as our “**Platform**”). These terms and conditions of use, as may be amended, restated or replaced by us from time to time (“**Terms of Use**” or “**Terms**”), apply to all of Air charter’s booking services (including the facilitation of payments) made available through the Platform (including where any services are provided by telephone or indirectly through a contracted distributor), and constitute a legally binding contract between you and Air Charters that governs your access to and use of the Platform.

PLEASE READ THE FOLLOWING TERMS OF USE CAREFULLY. BY CLICKING “I AGREE”, BY SIGNING UP, SIGNING IN OR USING THE PLATFORM, AND/OR BY COMPLETING A RESERVATION OR PURCHASING ANY SERVICES ON THE PLATFORM, YOU ACKNOWLEDGE AND AGREE THAT YOU HAVE READ AND UNDERSTOOD, AND AGREE TO BE BOUND BY, THESE TERMS OF USE, (WHICH INCLUDE AIRBLE’S PRIVACY POLICY ACCESSIBLE AT <https://aircharters.com/legal/privacy>). IF YOU AGREE TO THESE TERMS OF USE ON BEHALF OF AN ORGANIZATION, THEN YOU REPRESENT AND WARRANT THAT YOU HAVE THE AUTHORITY TO BIND THAT ORGANIZATION TO THESE TERMS OF USE. IN THAT CASE, THE TERM “YOU” WILL REFER TO THE ORGANIZATION.

IF YOU DO NOT AGREE TO THESE TERMS OF USE (INCLUDING AIR CHARTERS PRIVACY POLICY WHICH IS INCORPORATED HEREIN BY REFERENCE IN THE LINKED PRIVACY POLICY), YOU DO NOT HAVE PERMISSION TO ACCESS THE PLATFORM OR PURCHASE ANY SERVICES ON THE PLATFORM.

What is Aircharterss.com?

Air Charters arters is an online “marketplace” that works on behalf of its clients to facilitate reservations and purchase by customers of various commercial air services, including without limitation any related Tour operator services (“**Services**”), provided by aircraft operators and air carriers (“**Service Providers**”). Using the Platform, customers may purchase various Services, such as aerial sightseeing and air transportation of passenger and/or cargo, directly from duly certified and licenced Service Providers. Aircharters is an intermediary marketplace that does not act as an agent of the charterer nor an agent of the direct air carrier or foreign direct air carrier that performs flights and remains in operational control of aircraft.

Under applicable Kenya. compliance regulations, Air Charters operates as an air charter broker, and is not an airline or a direct air carrier, foreign direct air carrier, or an aircraft operator, and is not affiliated with any air carriers, foreign air carriers, or air operators. Air Charters does not own or operate any aircraft and does not provide any air transportation services nor any tour operator services. Aircharters does not hold an Air Service Provider Certificate issued by Transport Authority under the Kenyan Aviation Regulations nor a licence to provide domestic or international scheduled or non-scheduled services issued by the Transportation Authority under the Air Transportation Regulations, nor does it hold a certificate issued by the Kenya Aviation Authority nor a certificate, permit, or exemption to provide foreign air transportation. Department of Transportation, or such other certificates or authorizations required by applicable aviation authorities. Air Charters is not a reseller or retailer of air transportation services. It does not act as a travel agent and is not registered as a travel agent in any jurisdiction. Air Charters commercial relationship with Service Providers is governed by separate terms and conditions that govern the advertising and sale of air travel services by such Service Providers on the Platform. Air Charters is compensated by Service Providers for the listing of their Services on the Platform, and by transaction fees when you purchase services.

YOU AGREE THAT THE AIR TRAVEL SERVICES AND OTHER SERVICES PROVIDED BY A SERVICE PROVIDER, WHETHER ARRANGED OR HIRED THROUGH THE PLATFORM, ARE THE SOLE RESPONSIBILITY OF THE SERVICE PROVIDER. IN ADDITION TO THESE TERMS OF USE, SUCH SERVICE PROVIDERS MAY HAVE, OR REQUIRE YOU TO ACCEPT ADDITIONAL TERMS AND CONDITIONS FOR YOUR ACCESS AND USE OF SERVICES OFFERED BY SUCH SERVICE PROVIDERS, INCLUDING WITHOUT LIMITATION, THOSE SERVICE PROVIDERS' CONTRACTS OF CARRIAGE AND TARIFFS. SUCH CONTRACTS AND TARIFFS DO NOT INVOLVE AIR CHARTERS,.

Service Providers

Service Providers are responsible for delivering and performing the Services you purchase on the Platform as well as identifying and complying with all laws and regulations that apply to the Services provided by them. In Kenya, commercial air services, including aerial sightseeing and air transportation of passengers and/or cargo, may only be provided by aircraft operators that hold an air operator license issued under the *Kenyan Aviation Regulations* under the *Aeronautics Act*. Further, the *Kenyan Transportation Act* requires that aircraft operators offering air services to the public for the transportation of passengers or goods by air for hire or reward must hold a licence to provide such air services. Other Tour operator services may require that the provider of those services hold certain licenses, permits or other authorizations issued by government or regulatory authorities. Service Providers are solely responsible for ensuring that they comply with all applicable laws and regulations, including certification and licensing requirements under the laws of countries of operations and any other jurisdiction where such Service Providers operate. Under no circumstances whatsoever is Air Charters responsible for the contents of any advertisement or promotion displayed by any Service Provider, whether on the Platform or otherwise, any representation or warranty by or through a Service Provider, the delivery and performance of, or any failure to deliver and perform the whole or part of any Services, or any deficiencies in the Services, whether sold or made available through the Platform or otherwise.

All references in these Terms of Use to Kenyan laws and to licenses shall, to the extent the Services are to be carried out in East Africa Region or any other jurisdiction, be deemed to refer to applicable laws of East Africa Community or such other jurisdiction, to respective government agencies or applicable governing bodies in other jurisdictions, and to licences, permits and authorizations issued by such government agencies or applicable governing bodies under such laws of Kenya or such other jurisdiction.

IN ALL CASES, AIR CHARTER LIABILITY TO YOU IS LIMITED AND IS OUTLINED IN [SECTION 11](#).

Collection of Personal Information

Air Charters may collect certain personal information from you about individuals accessing and using the Platform or purchasing and consuming Services using the Platform. Our collection and use of such personal information is governed by our Privacy Policy accessible at <https://aircharters.com/legal/privacy>. A copy of the Privacy Policy may also be requested by sending an email to info@aircharters.com.

DISPUTES WITH AIRCHARTERS: THESE TERMS PROVIDE THAT ALL DISPUTES BETWEEN YOU AND AIR CHARTERS WILL BE RESOLVED BY BINDING ARBITRATION. YOU AGREE TO GIVE UP AND WAIVE YOUR RIGHT TO GO TO COURT TO ASSERT OR DEFEND YOUR RIGHTS UNDER THESE TERMS, EXCEPT WITH RESPECT TO MATTERS THAT MAY BE TAKEN TO SMALL CLAIMS COURT. YOUR RIGHTS ARE TO BE DETERMINED BY A NEUTRAL ARBITRATOR AND NOT BY A JUDGE OR JURY. YOUR CLAIMS CANNOT BE BROUGHT AS A CLASS ACTION.

Platform Overview

1. The Platform is an online “marketplace” that enables registered Service Providers to advertise, publish, market and sell Services, and communicate with and transact directly with individuals and organizations registered on the Platform, who or that wish to purchase and use such Services (“**Users**”). The Platform enables Users to search for, reserve and pay for Services in the form of:
 1. single entity charters, where the User charts an entire aircraft from a Service Provider for a flight or a series of flights, for the User’s own use or the use of his or its guests (“**Private Flights**”);
 2. subject to below, shared flights, where the User charts an entire aircraft from a Service Provider, and authorizes the Service Provider to market a certain number of seats on a per seat basis (“**Shared Flights**”);
 3. individual seats on flights operated by a Service Provider as scheduled or non-scheduled flights, or individual seats marketed by the Service Provider on Shared Flights (“**Individual Seats**”); or
 4. Tours, where a User can book an entire aircraft or individual seats on an aircraft for various activities offered by the Service Provider such as sightseeing tours, heli-picnic, heli-skiing, fishing, winery tours, skydiving and hot air balloon tours (“**Tours**”).
2. All Services advertised or available for purchase on the Platform are provided by or through Service Providers. Air Charters does not operate any aircraft and does not sell, resell, provide, control, manage, offer, deliver, organize or supply any Services nor does Air Charters doesn’t operate as a travel agent, or charter operator. All contracts for the purchase and sale of Services are made directly between a Service Provider and one or more Users, but all payments by Users shall be processed and **remitted directly to the Service provider via the platform as applicable**. Service Providers are solely and exclusively responsible for their listings of and advertisements for Services offered, and the for the performance, carrying out, operation and delivery of such Services. Air Charters is not and does not become party to and is not bound by or liable under any contract for the purchase and sale of Services entered into between a Service Provider and one or more Users. Air Charters is not acting as an agent of either Service Providers or Users, except in relation to payment services as described in [Section 6](#) below. **Eligibility**
3. In order to register as a User and purchase Services from a Service Provider using the Platform, you must be at least (eighteen) 18 years of age, legally competent to enter into a contract and not an undischarged bankrupt. By agreeing to these Terms, you

represent and warrant to us that (a) you are at least 18 years of age, legally competent to enter into a contract and not an undischarged Bankrupt (b) you have not been previously suspended from the Platform, and (c) your registration and use of the Platform does not violate any applicable laws or regulations.

Accounts and Registration

1. Personal Information

- To use the Platform, you must register an account with us. Upon completion of registration or when making a reservation and/or purchasing Services, you may be required to provide us with certain personal information about individuals who will be using the Services, which we may share with the Service Provider. Such personal information may include, but not be limited to, name, date of birth, a photograph, information from government issued identification documents, vital information such as weight and height, mailing address, email address and other contact information. Additional personal information may be requested by the Service Provider through our Platform. The collection and use of such personal information is governed by our **Privacy Policy**.

You agree that the information you provide to us is accurate and that you will keep it accurate and up to date at all times.

Account Security

- When you register an account, you will be required to create a password. You are responsible for maintaining confidentiality of your account information and password and may not share your account information with any person. Any access or use of your account by any person (other than you) constitutes a breach of these Terms of Use and may result in your continued access to the Platform being suspended or terminated. You agree that you are solely responsible for any and all activity in or related to your account. If you have a reason to believe your account has had a breach in security, you must notify us immediately at info@aircharters.com.

Licenses

1. Licence Limitations

- Subject always to your continuing compliance with these Terms of Use, Air Charters grants to you a limited, non-exclusive, non-transferable, non-sublicensable, revocable licence to: (a) install and use one object code copy of any mobile application associated with the Platform obtained from a legitimate marketplace (such as Apple Store or Google Play) on a mobile device that you own or control; and (b) access the Platform for your personal use. You may not licence, trade, sell or otherwise transfer such object code or access right.

Licence Restrictions

- You may not: (a) reproduce, distribute, publicly display or publicly perform the Platform; (b) make modifications to the Platform; or (c) interfere with or circumvent any feature of the Platform, including the security or access control mechanism. You may not use the Platform if you are prohibited under applicable law from using the Platform.

Air Charters Services, Cancellations and Documentation

1. Services

2. You may use the Platform to search for and purchase Services offered by Service Providers. The provision of Services is governed by a contract of carriage, Tariffs and any additional terms and conditions required by the Service Provider (collectively, “**Service Provider Conditions**”), which will govern your booking and relationship with the Service Provider and delivery of the Services by or through the Service Provider. The applicable Service Provider Conditions will be displayed, or access to such Service Provider Conditions will be available on the booking interface when making a booking request or a reservation. By submitting a booking request or making a reservation, you acknowledge and agree that you have read, understood and agree to be legally bound by the applicable Service Provider Conditions. Air Charters is not a party to and has no control over the Service Provider’s Terms And Conditions.

Users must submit a booking request using the Platform, in which case the User is required to submit the required information and pre-authorize the payment of applicable fares, charges, fees and taxes at the time of submission. The flight is not confirmed until the booking request is accepted by the Service Provider, as notified by the Service Provider to Air Charters to the User. Upon acceptance of a request, the payment is automatically sent to the Service Providers account via the air charters platform.

Users may not resell, or transfer booked flights, or any other Services reserved or passenger or cargo capacity on any flights reserved through the Platform, subject to Air charters Cancellation Policy and/or Service Provider Conditions.

1. **Private Flights**

A Private Flight is one where a User reserves the entire aircraft for a flight or a series of flights. The User submitting a booking request through the Platform is responsible for the payment of all applicable fares, charges, fees and taxes in respect of such flight or flights. The User may invite other individuals, who need not be Users, as his or her guests to travel on such flight up to the maximum number of passengers that may be carried on the applicable aircraft, provided that the User has (i) informed the Service Provider through the Platform of the number of such guests and provided such other information about the guests as the Service Provider requires in order to ensure safe operation of the aircraft; and (ii) paid the Service Provider through the Platform any additional fees applicable for the carriage of additional passengers as a result of increased costs (including in respect of fuel, airport fees and applicable third party charges).

A Service Provider may offer a Private Flight as a special offer on an Empty Leg Flight. An “**Empty Leg Flight**” is a flight operated by a Service Provider to position an aircraft for another flight, or to return an aircraft to its base of operations after another flight. also be offered by a Service

Provider on Empty Leg Flights. All bookings of Empty Leg Flights are non-changeable and non-refundable unless stated otherwise by the Service Provider.

2. **Shared Flights**

Shared Flights are flights where a User ("**Primary User**") reserves the entire aircraft for a flight and authorizes the Service Provider to market a certain number of seats as Individual Seats (as described below) through the Platform on a resale basis, at a price per seat determined by the Service Provider. If any Individual Seats are purchased by other Users, the Primary User shall be entitled to receive a partial refund of the Service Charge (as defined below) and applicable taxes thereon paid by the Primary User through the Platform, in an amount equal to the Service Charges paid by the other users for such Individual Seats. For clarity, the Primary User shall not be entitled to a refund of the whole or part of the Processing Fee and applicable taxes thereon paid by the Primary User. Unless otherwise stated in the Service Provider Conditions, reservations made by (i) the Primary User for a Shared Flight may be cancelled at any time before an Individual Seat is purchased on such flight by another User, and no cancellations are permitted after any Individual Seat has been purchased; and (ii) Individual Seats reserved by Users are non-changeable and non-refundable; unless the flight is cancelled by the Service Provider for any reason.

3. **Individual Seats**

Service Providers may offer Individual Seats for sale on flights operated by the Service Provider, including on scheduled and non-scheduled flights and Shared Flights. Individual Seats will be offered only on flights that are otherwise confirmed to operate as listed on the Platform. Unless otherwise stated in the Service Provider Conditions, reservations for Individual Seats made by Users are non-changeable and non-refundable unless the flight is cancelled by the Service Provider in accordance with these provisions.

Individual Seats may also be offered by a Service Provider on Empty Leg Flights. All bookings of Empty Leg Flights are non-changeable and non-refundable unless stated otherwise by the Service Provider.

4. **Tours**

Tours are flights offered by Service Providers for specific activities such as sightseeing tours, heli-picnic, heli-skiing, fishing, winery tours, skydiving and hot air balloon tours. Such flights may be offered either on an individual seat basis or on entire aircraft basis, and include specified activities in addition to air transportation, as specified in the listing.

3. **Payment - Processing Fee**

4. As consideration for the use of the Platform and for processing payments collected from Users by Air Charters and processed through third party payment platforms, you will be charged a processing fee by Air Charters (“**Processing Fee**”) when you submit a booking request, calculated as a percentage of the Service Charges (defined below) as determined by Service from time to time. This Processing Fee will be included in the total payment you make for the Services and will be passed to Air Charters by the air operators. The Processing Fee is non-refundable, save and except in situations where the Service Provider cancels a flight or flights due to a Voluntary or an Involuntary Cancellation (see [\(ii\)](#) below). In case of Shared Flights, upon the sale of any Individual Seats on such flight, the Primary User is not entitled to a refund of the whole or part of the Processing Fee and applicable taxes thereon paid by the Primary User.

Cancellations

NOTWITHSTANDING ANYTHING CONTAINED IN THESE TERMS OF USE, THE CANCELLATION OF SERVICES AND REFUND OF SERVICE CHARGES (DEFINED BELOW) AND ALL OTHER APPLICABLE AMOUNTS IN RELATION THERETO, OTHER THAN THE PROCESSING FEE, IS GOVERNED SOLELY AND EXCLUSIVELY BY THE SERVICE PROVIDER CONDITIONS, AND IN THE EVENT OF ANY CONFLICT BETWEEN THESE TERMS OF USE AND/OR OUR CANCELLATION POLICY AND SUCH SERVICE PROVIDER CONDITIONS, THE SERVICE PROVIDER CONDITIONS SHALL PREVAIL TO THE EXTENT OF SUCH CONFLICT.

1. Service Charges

“**Service Charges**” mean the aggregate amount paid by Users to purchase Services, inclusive of base fare, surcharges, third party charges, fees and taxes. However, Service Charges do not include the Processing Fee and applicable taxes thereon.

Involuntary Cancellation

Services may be cancelled by a Service Provider for reasons beyond the Service Provider’s reasonable control or due to factors that were not reasonably foreseeable by the Service Provider at the time the User made the Service Reservation. As such, an “**Involuntary Cancellation**” or force majeure event is defined as the actual, threatened, or reported occurrence of certain uncontrollable and/or unplanned events, including but not limited to inclement weather, conditions that make the safe operation of the aircraft or performance of the services impossible, unforeseen mechanical issues with the aircraft, airport operational issues, medical emergencies or regulatory restrictions. In the event of an Involuntary Cancellation, you will be promptly notified by Air Charters by electronic mail as soon as possible following receipt by Air Charters of such cancellation notification from the Service Provider.

In the event of an Involuntary Cancellation of Services by a Service Provider, Air Charters will comply and extend operators cancellation policies to customers unless: (i) the Service Provider offers to reschedule the departure date to another date that is within 30 days of the original departure date AND you accept such offer; or (ii) the Service Provider issues you a credit voucher in an amount equal to the Service Charges for future use, valid for a given duration of time from the original date of departure ("**Credit Voucher**").

In the event you decline the Service Provider's offer for rescheduled Services, the Service Provider will provide you with a Credit Voucher.

Voluntary Cancellation

Services may be cancelled by a Service Provider for reasons within Service Provider's reasonable control or due to factors that were reasonably foreseeable by the Service Provider at the time the User made the booking, such as but not limited to scheduled maintenance of the aircraft or unavailability of personnel ("**Voluntary Cancellation**"). In the event of a Voluntary Cancellation, you will be promptly notified by Air Charters by electronic mail as soon as possible following receipt by Air Charters of such cancellation notification from the Service Provider.

In the event of an Voluntary Cancellation of Services by a Service Provider, whether within or after 24 hours of making the reservation, Air Charters will abide with the operators cancellation policy, Service Charges to you unless: (i) the Service Provider offers to reschedule the departure date to another date that is within 30 days of the original departure date AND you accept such offer; or (ii) the Service Provider offers you a Credit Voucher AND you accept such Credit Voucher.

Cancellation by User

You may cancel a reservation or a booking request for a Service made through the Platform at any time prior to the scheduled departure of first flight on your itinerary. Any cancellation of your reservation or booking shall be governed exclusively by the Service Provider Conditions, and you may not be entitled to any refunds unless provided for under the Service Provider Conditions or pursuant to applicable laws and/or regulations.

If and to the extent the Service Provider Conditions permit refunds of Service Charges upon cancellation, Air operator will refund the Service Charges to you, after deducting any cancellation fees or penalties levied by the Service Provider in accordance with the Service Provider Conditions.

If the itinerary includes multiple flight segments (such as a round trip that combines multiple destinations or Service Providers), the

terms relating to cancellation will apply to each flight segment separately and it is the User's responsibility to comply with these terms in respect of each such segment and submit a request for cancellation with the Service Provider operating the initial segment and each subsequent segment.

No Shows

In the event any passenger on a flight fails to present himself or herself at the Service Provider's check-in counter at the prescribed time, or such other time as the Service Provider advises for a flight, or the first flight in a series of flight, that passenger will be considered a "no-show". In the event of a no-show for a Private Flight, that flight and any subsequent flights that are part of the same reservation, shall be cancelled, and you will not be entitled to receive any refund of the Service Charges or any credit for the same. In the event a passenger is a no-show for a Shared Flight or a Tour, his or her individual reservation shall be cancelled, and he or she will not be entitled to any refunds or credits in respect of the Service Charges, unless otherwise provided for under the Service Provider Conditions.

Fraud or Illegal Purchase

Air Charters reserves the right to cancel any booking or reservation where Air Charters has reasonable grounds to suspect that the payment for such booking or reservation has been made fraudulently or illegally or without the authorization of the payor. Air Charters shall not be liable to you or any person claiming by or through you for any loss, damage or liability suffered or incurred by you or such other person as a result of such cancellation. In addition, Air Charters has the right to terminate your account and any other existing bookings or reservations made through your account in the event it is established that your account has been used to make a fraudulent purchase.

2. Processing Fee

The Processing Fee is non-refundable in all circumstances save and except in the event of a cancellation of the Services by the Service Provider.

In the event of an Involuntary Cancellation of Services by a Service Provider, the Processing Fee shall be refunded to you unless (i) the Service Provider reschedules departure date to another date that is within 30 days of the original departure date AND you accept such rescheduling; or alternatively, (ii) the Service Provider provides you a refund of the Service Charges in the form of credit for future use.

In the event of a Voluntary Cancellation of Services by a Service Provider, the Processing Fee shall be refunded to you concurrently with a

refund of the Service Charges unless (i) the Service Provider reschedules departure date to another date that is within 30 days of the original departure date AND you accept such rescheduling; or (ii) the Service Provider offers AND you accept a refund of the Services Charges in the form of credit for future use. **Processing of Cash Refunds**

Subject to the provisions of these Terms of Use, Air Charters will make reasonable commercial efforts to process cash refunds, if any, within 20 days of the date of an eligible cancellation, subject at all times to such refunds being processed by the applicable Service Provider within such time period.

5. Documentation

6. Production of certain documents may be required in order to complete a booking request or a reservation or commence travel. These documents may include valid government issued photo identification and must be provided at the time of submitting a booking request or making a reservation. You may also be asked to produce those and other documents by the Service Provider prior to boarding your flight. Inability to produce such documents upon request by Air Charters or the Service Provider may result in a cancellation of the Service without any refund to you. **Screenings**

6. Prior to boarding, you may be required by law, by the Service Provider or any of the airport or governmental authority requirements, to submit to a security screening (as well as any health-related screening or requirement in respect of the COVID-19 pandemic). By booking through the Platform or by arranging a Flight, you agree that you and your possessions are subject to any such screening. This is a condition of boarding your flight. Your refusal to undergo any such required screening or your lack of compliance with screening procedures may result in your inability to board the aircraft, in which event your booking will be cancelled without refund to you. **Payment Requirements**

7. You are required to pre-authorize payment of the Service Charges and the Processing Fee and any other applicable fees and charges for Services purchased through the Platform at the time of submitting a booking request. Before fee payment, you will have the opportunity to review and accept the charged Service Charges and the Processing Fee. Service Charges and the Processing Fee for Services originating in Kenya are payable in Kenya Shillings or US Dollars, and in respect of Services originating in another jurisdiction, in other localities, or such jurisdiction as displayed on the Platform payment in USD will apply. You authorize Air Charters to charge Service Charges and the Processing Fee towards the payment method you specify at time of purchase. For payment of Service Charges and the Processing Fee using a credit card, we may seek pre-authorization of your credit card account before purchase. **Prohibited Conduct**

8. YOU AGREE NOT TO:

1. use the Platform for any illegal purpose or in violation of applicable local, provincial, national or international laws and regulations.

2. violate any rights or interests of Air Charters, the applicable Service Provider(s) or any third parties, including by infringement or misappropriation of any intellectual property right.
3. perform any fraudulent activity, including by way of example: (a) providing false information to Air Charters and/or the Service Providers, (b) creating a false identity or impersonating any other person, (c) making a booking for the purpose of holding or blocking seats with the intention to obtain lower fares or otherwise abusive actions, or (d) claiming false affiliation or accessing any other Platform account without permission;
4. frame, display, copy, distribute, relist, mirror or otherwise embed the Platform in or through any other application or website without Air Charters prior written consent.
5. solicit personal information from other Users on the Platform.
6. interfere with security-related features or the Platform, including (a) disabling features preventing or limiting use, (b) copying content or (c) reverse engineering including attempting to discover the source code or any portion of the Platform.
7. interfere with the operation of the Platform or any User's enjoyment of the Platform by, for example: (a) uploading any virus, adware, spyware, word or other malicious code; (b) creating unsolicited offers or advertisements to other Users on the Platform; (c) collecting Users' personal information or third-party personal information without consent or in breach of applicable laws; or (d) interfering/intruding/disrupting any network, equipment or server related to the Platform;
8. sell or transfer your account on the Platform, the access granted to you under these Terms of Use, Services arranged through the Platform, any Materials (defined in [Section 16](#)) or any right/ability to view, access or use any materials referred to in these Terms of Use;
9. as a User, use the Platform to conduct business or any other activity for commercial gain.
10. attempt to assist, encourage, permit or request any of the above activities or any other activity that is in contravention of these Terms of Use or any Service Provider Conditions.

9. Termination of Use

10. You may terminate your account by contacting info@Aircharters.com. Upon termination, you are obligated to pay any outstanding commission fees due and owing by you to Air Charters or to any applicable Service Provider. Air Charters may terminate or suspend your account with Air Charters at any time, for any reason and without notice. Air Charters holds the right to modify or discontinue the Platform at any time. No liability will be held by Air Charters in regard to modifications of the Platform or any suspensions or terminations of Users' accounts.**No Warranties or Disclaimers**

11. The Platform, Materials and content available through the Platform are provided “as is” and “as available.” Air Charters disclaims all conditions and warranties, expressed and implied, including (a) implied warranty of merchantability, fitness for a particular purpose, quiet enjoyment or non-infringement; or (b) any warranty arising out of “course of dealing”, usage or trade. The Platform provides information and a means of obtaining Services through Service Providers but does not provide Services nor act in any way as a Service Provider, air carrier or a common carrier. Certain information contained in the Platform, including flight related information, is made available by Service Providers or other third parties, and Air Charters is not responsible for the accuracy or completeness of any such information.

Air Charters makes no representations or warranties, and expressly disclaims any representations or warranties and guarantees whatsoever in respect of any Services (including without limitation, the value or quality of Services) advertised, listed, marketed, sold, offered, provided or delivered by any Service Provider through the Platform, and assumes no responsibility or liability for ANY Services provided by or acts or omissions of any Service Providers.

Air Charters makes no representations or warranties that the Platform, any portion of the Platform, or any materials or content offered through the Platform, will be uninterrupted, secure or free of errors, viruses or other harmful components. Air Charters does not warrant any of those or similar issues will be corrected. No advice, information, materials or content obtained by or through Air Charters, whether oral or written, will create any representation, warranty or guarantee regarding Air Charters.. No employee, agent or personnel of Air Charters is authorized to make any representations, warranties or guarantees on behalf of Air Charters.

EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, AIR CHARTERS EXPRESSLY DISCLAIMS ALL WARRANTIES, REPRESENTATIONS, CONDITIONS OR GUARANTEES, EITHER EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF DURABILITY, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSES, WITH REGARD TO THE USE OF THE PLATFORM OR THE DELIVERY OF THE SERVICES.

Loss of Property and Data

1. You agree and acknowledge that flying and certain activities constituted or associated with Tours are inherently dangerous and may lead to serious injury or death. Air Charters does not carry or maintain liability insurance covering your purchase or use of the Services or your access or use of any materials/content available on the Platform. You agree to assume all risk for any injury to or loss of life of any person, or any loss of or damage to any person's property that may result from your purchase and use of Services, or your access or use of any materials/content available on the Platform. Your use of the Platform, including all associated sites or services, is at your own discretion and risk.

2. You are solely responsible for any damage to your property, including your computer system or other equipment, used to connect to the Platform. Loss of data resulting from use or access to the Platform and materials or content available on the Platform are at your own risk.

12. Limitation of Liability

1. **Consequential Damages**
2. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL AIR CHARTERS BE LIABLE FOR ANY SPECIAL, INCIDENTAL, INDIRECT, PUNITIVE, EXEMPLARY OR CONSEQUENTIAL DAMAGES, LOSSES OR COSTS WHATSOEVER, NOR FOR DAMAGES OR COSTS, FOR LOSS OF BUSINESS PROFITS, BUSINESS INTERRUPTION, LOSS OF BUSINESS INFORMATION, OR ANY OTHER PECUNIARY LOSS, ARISING FROM OR RELATED TO THE USE OF THE PLATFORM OR THE SERVICES, WHETHER BASED ON BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, EVEN IF CAUSED BY AIR CHARTER'S NEGLIGENCE OR EVEN IF AIR CHARTERS HAS BEEN ADVISED OF THE POSSIBILITY OF THE SAME.

NOTWITHSTANDING ANY OTHER WORDING IN THESE TERMS OF USE OR IN ANY OTHER AGREEMENT ENTERED INTO BETWEEN AIR CHARTERS AND YOU, IN THE EVENT THAT AIR CHARTER IS OR MAY BE REQUIRED TO PAY ANY DAMAGES OR COSTS FOR ANY REASON UNDER OR IN CONNECTION WITH THE USE BY THE USER OF THE PLATFORM OR THE SERVICES, THEN AIR CHARTER'S AGGREGATE LIABILITY SHALL BE LIMITED TO AN AMOUNT EQUAL TO THE PROCESSING FEE ACTUALLY PAID BY USER TO AIR CHARTERS DURING THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRECEDING THE DATE OF THE TRANSACTION THAT GAVE RISE TO THE CLAIM FOR SUCH DAMAGES OR COSTS. ALL CAUSES OF ACTION AGAINST AIR CHARTERS ARISING OUT OF OR RELATING TO THE USE OF THE PLATFORM SHALL EXPIRE UNLESS BROUGHT WITHIN SEVEN DAYS AFTER THE DATE OF THE TRANSACTION THAT GAVE RISE TO SUCH CLAIM.

Quality Control

3. The quality of the Services is the responsibility of the Service Provider that provides the Services to you, and is governed by the Service Provider Conditions, including without limitation, the contract of carriage entered into between you and a Service Provider. Air Charters is not responsible for any deficiencies in the Services you may receive from a Service Provider. You understand that by using the Platform, you may be exposed to activities that are potentially dangerous, harmful or unsafe and you use the Platform at your own risk.

Compliance with Applicable Laws

4. Air Charters makes reasonable efforts to ensure (but does not warrant nor guarantee) that all Service Providers that list their Services on the Platform are

duly certified and licenced to operate such Services. Service Providers listing Services on the Platform are required to meet safety standards prescribed by and hold an air operator certificate issued by Kenya Civil Aviation Authority (KCAA) the *Aviation Regulations Body in Kenya*, or applicable aviation authorities in other jurisdictions where Air Charters operates. In addition, Service Providers providing air transportation services are also required to hold a licence, or similar authorizations issued by applicable aviation authorities in other jurisdictions, and Tour operators may be required to hold other licences, permits or authorizations. However, it is the individual Service Provider's responsibility to ensure that any flights and Tours operated by or through it comply with the requirements of all applicable laws and Air Charters does not assume any responsibility or obligation to monitor or verify compliance by a Service Provider with any applicable laws and regulatory requirements, or for the assessment of the suitability, legality or skill of any Service Provider, including in respect of Tours operated by or through it.

Users may request a copy of a Service Provider's air operator certificate, the certificate of airworthiness of a particular aircraft and/or the Service Provider's licence or any Tour operator authorization directly from the Service Provider. Air Charters will not be responsible for any liabilities, claims, damages or costs suffered or incurred by a User or any other person directly or indirectly as a result of a failure by or through a Service Provider to: (a) maintain current any certificates and licences required to be held by or through such Service Provider in order to provide the Services, or (b) comply with all applicable laws and regulations.**Disputes with Service Providers**

13. Air Charters will not be a party to disputes or negotiations between you and a Service Provider. By accepting these Terms of Use, you release Air Charters from any and all claims, demands and damages, actual and consequential, arising from or related to any disputes between you and a Service Provider.**Indemnity**
14. To the maximum extent permitted by applicable law, you release, indemnify and hold harmless Air Charters, its affiliates and subsidiaries and each of their respective directors, officers, shareholders, employees, consultants, advisors and agents (each an "**Indemnitee**") from and against any actions, causes of action, claims, losses, liabilities, damages, costs and expenses (including, without limitation, accounting fees and legal fees on a solicitor and own client basis) made against, suffered, incurred or paid by an Indemnitee that is directly or indirectly related to or arises out of: (i) your breach of, or failure to observe and comply with these Terms of Use; (ii) your breach of, or failure to observe and comply with any Service Provider Conditions; (iii) your improper access to or improper use of the Platform or any Services; (iv) your reservation or request for booking of any Services; (v) your or your guests' violations of or non-compliance with applicable laws or an order or direction issued by a lawful authority during your use of

the Services; or (vi) your purchase and use of the Services, your interaction with or through any Service Provider or any loss, liability, deficiency, damage or injury to property incurred by or bodily injury to or death of any person arising out of or related to your use of the Services. This indemnity survives the termination of your relationship with Air Charters. Air Charters reserves the right to assume the exclusive defense and control of any matter that is subject to the indemnification set forth above.

Third-Party Services: Linked Websites

15. Air Charters may provide tools on the Platform enabling the exporting of information to operators or other third parties in relation to the provision of Services, including features that link your account on the Platform to Service Providers, or implementation of third-party buttons. By using any of these tools, you agree to the transfer of information to the applicable Service Provider or third party. Air Charters has no control over a Service Provider's or such third party's use of your information, including private or confidential information.

The Platform may contain links to the Service Providers' or third parties' websites or resources. These are provided for your convenience only, and Air Charters is not responsible for and does not endorse any such websites or resources or the contents thereof. Air Charters assumes no responsibility or liability for the availability, accuracy or content of such third-party websites or resources. The access and use of such third-party websites or resources may be subject to terms and conditions or privacy policies that are different from these Terms of Use and Air Charters Privacy Policy.

Privacy Policy

16. Please read the Air Charters Privacy Policy, available at <https://aircharters.com/legal/privacy>, for information regarding the collection, use, storage and disclosure of your personal information. The Aircharters Privacy Policy is incorporated into these Terms of Use by reference.

By accessing and using the Platform to make a reservation or to submit a request to book Services, you consent to our release of your (and, as applicable, your guests') personal information to the Service Provider from whom you are purchasing

Services. Modification of Terms of Use

17. Air Charters reserves the right to change these Terms of Use at any time and from time to time without prior notice. You will be notified of any material changes to these Terms of Use in writing. In certain cases, of material changes to these Terms of Use, such as changes to your rights, responsibilities and obligations, you will be asked to re-accept the Terms of Use. If you choose not to accept such changes, you will no longer be able to use the Platform and your account will be terminated. Minor changes to these Terms of Use, such as corrections and clarifications, are effective upon publication without prior notice to you.

Disputes arising under these Terms of Use will be resolved in accordance with the version of these Terms that was effective at the time the dispute arose.

Ownership and Proprietary Rights

18. The Platform is owned and operated by Air Charters. The visual interfaces, graphics, design, compilation, information, data, computer code (source code or object code), products, software, services, and all material elements of the Platform provided by Air Charters (collectively, “**Materials**”) are protected by intellectual property and laws. All Materials are the property of Airble and its relevant third-party licensors. Air Charters reserves all rights and interests in and to the Materials.**Feedback**
19. Any feedback provided to us with input, suggestions, proposed modifications or improvements to the Platform (“**Feedback**”) become the property of Air Charters. Air Charters reserves all rights to any materials or information provided as Feedback.**Governing Law**
20. These Terms of Use and all matters and disputes arising hereunder or related hereto are governed by the laws of Kenya, applicable therein without regard to its conflict of law principles, the application of which would result in the laws of another jurisdiction applying to these Terms of Use or any dispute or matter arising hereunder or related hereto. Despite the mandatory arbitration clause in [Section 21](#) of this Agreement, if a lawsuit or court proceeding is permitted under these Terms of Use, then you and Air Charters agree to submit to the personal and exclusive jurisdiction of the courts in Nairobi, Kenya for the purpose of litigating any dispute.**Force Majeure**
21. Air Charters will not be liable for any default or delay in the performance of its obligations under these Terms of Use, to the extent its performance is delayed or prevented due to causes beyond its reasonable control, including but not limited to acts of God, natural disasters, terrorist acts, war or other hostilities, labour disputes, civil disturbances, the actions or omissions of third-parties (including, without limitation, Service Providers), electrical or communication system failures or government action.**General**
22. You may not assign or transfer these Terms of Use or your rights under these Terms of Use, including by operation of law. Air Charters may assign these Terms of Use at any time without notice or consent. Use of “section headers” in these terms is for readability only and does not have any impact on the interpretation of any provision. If any part of these Terms of Use is held as invalid or unenforceable, the unenforceable part will be given effect to the greatest extent possible while the remaining parts remain in full effect. Sections [4](#), [5](#), [9](#), [10](#), [11](#), [12](#), [14](#), [16](#), [18](#) and [21](#) of these Terms of Use as well as the Privacy Policy and the Cancellation Policy shall survive the termination of your relationship with Airble.**Dispute Resolution and Arbitration**
1. **General**
 2. You and Air Charters agree that all disputes arising in connection with your access and use of the Platform, or arising out of these Terms of Use, will be resolved by binding arbitration. The arbitration shall be conducted in accordance with the then-current Commercial Arbitration Rules of the AAA to the extent that such Rules do not conflict with the terms of this Agreement. The Arbitrator's decision (which shall be rendered in writing) shall be final, non-appealable (except as stated in the Arbitration Act) and binding upon the parties and may be

enforced in any court of competent jurisdiction; provided that the parties agree that the Arbitrator and any court enforcing the award of the Arbitrator shall not have the right or authority to award punitive or exemplary damages to any party. The responsibility for paying the costs and expenses of the arbitration, including compensation to the Arbitrator shall be allocated to one party or both parties in a manner determined by the Arbitrator to be fair and reasonable under the circumstances. Each party shall be responsible for the fees and expenses of its respective counsel, consultants and witnesses, unless the Arbitrator determines that compelling reasons exist for allocating all or a portion of such costs and expenses to one or more other Parties.

This agreement to arbitrate disputes include all claims related to or arising from these Terms of Use, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory, and irrespective of whether the claim arises during or after the termination of your relationship with Air Charters.

You understand and agree, by accepting these Terms of Use, that you and Air Charters are each waiving the right to a trial by jury or to participate in a class action.

Exceptions

3. These terms do not waive or otherwise limit the right of either party to: (a) bring an individual action to small claims court; (b) seek injunctive relief in a court of law in aid of arbitration; or (c) file suit in a court of law to address an intellectual property infringement claim.

Process of Arbitration

4. A party who seeks arbitration ("**Notice of Arbitration**") must first send written notice of the dispute to the other party, by Email or by courier delivery. Air Charters address for arbitration is Ndemi Lane, Branton Court, Office No. C.08. Postal Address 352-00517 Uhuru Gardens, Nairobi, Kenya. The notice of arbitration must: (a) describe the nature and basis of the claim or dispute; and (b) state the specific relief sought ("**Demand**"). The parties will make efforts in good faith to resolve the claim directly and amicably. If that is not successful within 30 days of receiving the Notice of Arbitration, you and/or Air Charters may proceed with arbitration.

All arbitration proceedings between the parties will be confidential unless both parties agree otherwise in writing.

Acceptance of No Class Actions

23. You agree that you may bring claims against Air Charters only in your individual capacity and not as a plaintiff or class member in any purported class or representative proceeding. You further agree that the arbitrator may not consolidate more than one person's claims and may not otherwise preside over any form of a representative or class proceeding.

Consent to Electronic Communication

24. By using the Platform, you consent to receive electronic communication from Air Charters , as further described in our Privacy Policy. Please read our Privacy Policy to learn more about our communications practices. You agree that any notices, agreements, disclosures or other communications that are sent by Air Charters

electronically will satisfy any legal communication requirements, including written communication.**Contact Information**

25. *Cit Logistics Systems Ltd.*

352-00517 Nairobi

Ndemi Lane, Branton Court Office No. C.08

*Email: info@aircharters.com***Termination and Changes**

26. Air Charters reserves the right to change or terminate, in whole or in part, any offer of Services made or offered through the Platform. Air Charters may suspend or terminate a User account at any time and for any reason. Air Charters reserves the right to suspend a User account if it finds any activity using such account that it determines, at its sole and absolute determination, to be actually or potentially fraudulent, abusive, illegal or in violation of these Terms of Use.**Intellectual Property Rights**

All titles and intellectual property rights in and to this Policy and any other Air Charters Policies, the Air Charters APP and platform and related software (including without limitation, the content and source code) and in and to the Air Charters name and any related logos vest exclusively in Air Charters and shall not be duplicated, distributed, licensed, sold, reverse engineered, modified or improved or otherwise dealt with, as applicable, except with the prior written consent of Air Charters, which consent may be withheld at Air Charters sole discretion.
